

Court No. - 2

Case :- WRIT - C No. - 4366 of 2025

Petitioner :- Ram Magan Chauhan @ Ram Magan

Respondent :- State Of Up Thru. Addl. Chief Secy. Deptt. Of Energy Lko. And 4 Others

Counsel for Petitioner :- Arun Kumar

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

Heard.

The petitioner's grievance is that an electricity connection has been provided to the opposite party No.5 from a transformer, which is installed at the expense of the petitioner, which is impermissible, however, learned counsel for the Electricity Corporation relies upon para 4.29 of the Uttar Pradesh Electricity Supply Code, 2005, according to which, it is permissible. On being confronted, the petitioner's counsel could not show that the legal position was otherwise, therefore, we see no reason to interfere.

The Writ Petition stands **disposed of**, however, without prejudice to the rights of the petitioner to avail other remedies, if any, prescribed in law.

At this stage, learned counsel for the petitioner says that the electricity pole has been installed on the field of the petitioner, if so, the petitioner can either approach the authorities concerned or can avail the remedies, as may be prescribed in law and if any application is filed before the Executive Engineer concerned, the same shall be considered and needful shall be done after getting the facts verified and hearing the affecting parties.

(Om Prakash Shukla,J.) (Rajan Roy,J.)

Order Date :- 7.5.2025

Saurabh